

22STCV34285 22STCV34285

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-08-04

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Case Number: 22STCV34285 Hearing Date: August 4, 2026 Dept: 413

TENTATIVE RULING

Hearing

Date: August 4, 2026

Aubrey v. Ochoa, Case No. 22STCV34285

Ruling: Plaintiff's Request for Default

Judgment is denied. The deficiencies in the request for default judgment previously noted have not been corrected.

Default

judgment cannot be entered. The first service of the Statement of Damages was not in the same manner as service of a summons as required by Code Civ. Proc. § 425.11(c)-(d) ["If a party has not appeared in the action, the statement shall be served in the same manner as a summons."], and service of the Statement of Damages was done by mail and acknowledgement service, which requires an attached completed acknowledgement receipt.

On

December 30, 2025, service was by mail, but only after default was entered. Code Civ. Proc. § 425.11(c) specifically states: "If no request is made for the statement referred to in subdivision (b), the plaintiff shall serve the statement on the defendant before a default may be taken." Default was taken on December 25, 2025.

Plaintiff

needs to correct these issues before seeking entry of a default judgment.